

CLIC Case 0001

Country/Court: Austria, Supreme Court

Decision number/date: 15Os99/94, 1994-07-13

Crime / Issue: Jurisdiction, Genocide

Abstract prepared by: Philipp Gartner

The accused was arrested in Austria on the grounds of the suspicion that he committed genocide (§320 Criminal Code), murder (§75 Criminal Code) and arson (§169 Criminal Code). It was alleged that he raided a Bosnian-Muslim village, thereby killing one inhabitant and deporting another to a concentration camp as well as burning down a house, and that the accused had the intent to destroy the group of Bosnian Muslims living in the village as such. Consequently, the investigating judge found that there were reasonable grounds to believe that these allegations were true and ordered pre-trial detention on the basis of a potential flight risk.

The accused subsequently lodged an appeal, raising three arguments. First, he claimed that Austria did not have jurisdiction over these acts. Second, he claimed that all acts were permitted by international humanitarian law. Thus, an exercise of criminal jurisdiction would violate the principle of *nulla poena sine lege*. Lastly, he raised concerns that he may be tried for the same crimes either in Bosnia and Herzegovina or before the International Criminal Tribunal for the former Yugoslavia (“ICTY”).

Regarding the first point of appeal, the Supreme Court (“the Court”) examined §66 paragraph 1 subparagraph 2 of the Austrian Criminal Code (“Criminal Code”). This provision gives Austria jurisdiction over acts committed abroad and by foreigners under the condition of double criminality if the accused is arrested in Austria and cannot be extradited unless the nature of the crime does not allow for extradition.

The Court consequently turned to the Yugoslav Criminal Code which was applicable at the relevant time and found that it contained all alleged crimes without major modifications. Additionally, it held that Austria was not in a position to offer extradition to Bosnia and Herzegovina because it could not reach the local authorities due to the ongoing war. Subsequently, the Court referred to Article VII of the Genocide Convention (“the Convention”) according to which acts under Article III of the Convention were not to be regarded as political crimes. Therefore, the nature of the crime did not prevent extradition.

Furthermore, the Court addressed the question whether Article VI of the Convention prevented Austrian jurisdiction. A narrow reading of this provision would imply that only

Bosnia and Herzegovina – as the state on whose territory the act was committed – or an international penal tribunal - whose jurisdiction was accepted by Bosnia and Herzegovina - could exercise jurisdiction. However, the Court argued that a dysfunctional justice system in the territorial state as well as the absence of an international criminal court would lead to impunity for acts of genocide. This interpretation would be contrary to the purpose of the Convention. Consequently, it confirmed its jurisdiction over the case.

Regarding the second point of appeal, the Court held that indiscriminate attacks against unarmed civilians were evidently not permitted under international humanitarian law. Therefore, there was no violation of *nulla poena sine lege*.

Lastly, the Court referred to Article 10 paragraph 2 subparagraph b of the ICTY Statute which states that a person who has been tried for serious violations of international humanitarian law by a national court may not be tried again by the ICTY unless the national proceedings were suffering from certain deficiencies. The Court found no evidence of such deficiencies in the ongoing proceedings in Austria. Furthermore, it held that the Yugoslav Criminal Court provided for a deduction of the sentence if the accused has been convicted abroad for the same action. It concluded that there was no danger of double jeopardy and dismissed the appeal.